

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:
Purchased:

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JOVORNE EDWARDS,

Plaintiff,

Plaintiff designates
New York County as the place of
trial

-against-

The basis of the venue is where
the tort arose

CITY OF NEW YORK, DEPARTMENT OF
HOMELESS SERVICES, FRANTZIA NOEL, JAMES
WATSON, ERICK GREEN, KELLY HABEKOST,
AND JOHN OR JANE DOE 1-10,

Defendants.
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SUMMONS

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
January 4, 2022

SIM & DEPAOLA, LLP
Attorneys-at-Law
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By:



Aatur Raquib, Esq.
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TO: CITY OF NEW YORK

Via Corporation Counsel Of The City of New York
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DEPARTMENT OF HOMELESS SERVICES POLICE

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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JOVORNE EDWARDS,

Index No.:

Plaintiff,

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, DEPARTMENT OF
HOMELESS SERVICES, FRANTZIA NOEL, JAMES
WATSON, ERICK GREEN, KELLY HABEKOST,
AND JOHN OR JANE DOE 1-10,

Defendants.
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Plaintiff, **Mr. Jovorne Edwards**, by and through the undersigned attorneys, Sim & DePaola, LLP, for his complaint against Defendants, **CITY OF NEW YORK, DEPARTMENT OF HOMELESS SERVICES, FRANTZIA NOEL, JAMES WATSON, ERICK GREEN, KELLY HABEKOST**, and **JOHN or JANE DOE 1-10**, alleges and states as follows:

1. This is a civil rights action, in which Plaintiff seeks relief and redress vis-à-vis sections 1981, 1983, 1985, 1986 and 1988, of title 42, of the United States Code, for the violation of his civil rights protected by the Fourth, and Fourteenth Amendments to the Constitution of the United States, the constitution of the State of New York and the laws of the City and State of New York.

2. The following claims arose on January 15, 2021, when Plaintiff was caused to be assaulted, battered, illegally stopped, seized, searched, detained and arrested by

Defendants, including FRANTZIA NOEL, JAMES WATSON, ERICK GREEN, KELLY HABEKOST, and JOHN OR JANE DOE 1-10, acting under color of state law, without a valid judicially authorized arrest warrant, reasonable suspicion, probable cause or any other legal justification to do so.

3. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

PARTIES

4. Plaintiff, Jovorne Edwards ("Mr. Edwards") is an African American male adult, who resides in New York, New York.

5. The Defendant City of New York ("City") is a municipal corporation duly organized and existing under the laws of the State of New York.

6. At all relevant times herein, the New York City Police Department ("NYPD") was a wholly owned subsidiary which was further wholly operated, managed, maintained and controlled by Defendant City.

7. At all relevant times herein, the New York City Department of Homeless Services and the New York City Department of Homeless Services Police (herein collectively referred to as "DHSPD") are a wholly owned subsidiary which was wholly operated, managed, maintained, and controlled by Defendant City.

8. At all relevant times herein, Defendant City, acting through its NYPD was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline

and retention and conduct of all NYPD personnel, including correction officers, detectives and supervisory officers as well as the individually named Defendants herein.

9. At all relevant times herein, Defendant City, acting through its DHSPD was responsible for the policy, practice, supervision, implementation, and conduct of all DHSPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all DHSPD personnel, including correction officers, detectives and supervisory officers as well as the individually named Defendants herein.

10. At all relevant times herein, Defendant City was responsible for enforcing the rules of the NYPD and DHSPD, and for ensuring that the NYPD and DHSPD personnel obey the laws of the United States and the State of New York.

11. At all relevant times herein, Defendant FRANTZIA NOEL ("NOEL"), JAMES WATSON ("WATSON"), ERICK GREEN ("GREEN"), KELLY HABEKOST ("HABEKOST"), and JOHN or JANE DOE 1-10, were, at all times relevant herein, police officers, detectives, sergeants, lieutenants or other supervisory officers, employed by the DHSPD and NYPD, and, as such, were acting in the capacities of agents, servants and employees of the City of New York. Defendants were, at all times relevant herein, believed to be assigned to the Department of Homeless Services Police or the New York City Police Department. Defendants NOEL, WATSON, GREEN, and HABEKOST are being sued in their official and individual capacities.

12. At all times relevant herein, Defendants JOHN or JANE DOE 1-10 were police officers, detectives, supervisors, policy makers or officials employed by the DHSPD or

NYPD. At this time, Plaintiff does not know the true names or tax registry numbers of Defendants JOHN or JANE DOE 1-10, as such knowledge is within the exclusive possession of Defendants.

13. At all times relevant herein, Defendants JOHN or JANE DOE 1-10 were acting as agents, servants and employees of the City of New York, DHSPD or the NYPD. Defendants JOHN or JANE DOE 1-10 are being sued in their individual and official capacities.

14. At all times relevant herein, Defendants, including NOEL, WATSON, GREEN, HABEKOST and JOHN or JANE DOE 1-10, were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

15. The names, JOHN or JANE DOE 1-10, are fictitious and meant as placeholders for the Police Officers of the NYPD or DHSPD who violated the constitutional rights of Plaintiff by grabbing him by his body and limbs and physically assaulting his person by punching, kicking, and hitting him all over his body.

16. Within ninety (90) days of accrual dates for these claims, Plaintiff timely filed a written notice of claim with the New York City Office of the Comptroller.

17. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.

18. Plaintiff has complied with municipal defendant's request for an oral examination pursuant to Section 50-H of the New York General Municipal Law by stipulation.

19. This action and associated claims have been commenced within one-year-and-ninety-days after the occurrences upon which they are based and upon availing Executive Order 202.8 *et seq.* issued by former Governor Andrew Cuomo in response to ongoing COVID-19 pandemic that tolled the statute of limitations.

FACTUAL CHARGES

20. On January 15, 2021, at approximately 3:00 a.m., within the vicinity of the Second floor of Clarke Men's Shelter at 121 Hell Gate Circle, Manhattan, New York, 10035, Plaintiff was assaulted by another resident of the shelter and then arrested by Defendants, including NOEL, WATSON, GREEN, HABEKOST, and JOHN OR JANE DOE 1-10.

21. On said date and time, Plaintiff was involved in a disagreement with another resident of Clarke Men's Shelter at said location of the incident.

22. At approximately 3:30 a.m. on said date and location, Defendants, including NOEL, WATSON, GREEN, HABEKOST, and JOHN OR JANE DOE 1-10 arrived on scene.

23. Plaintiff, at the time, was unharmed and lawfully present on the second floor of Clarke Men's Shelter at said location of the incident.

24. Defendants, including NOEL, WATSON, GREEN, HABEKOST, and JOHN OR JANE DOE 1-10, did not observe Plaintiff commit any crime or violation of the law.

25. Defendants including NOEL, WATSON, GREEN, HABEKOST, and JOHN OR JANE DOE 1-10 then approached Plaintiff in a threatening and aggressive manner and began to physically assault him by punching, kicking, hitting his body and then

slamming him on the ground where said defendants continued to kick Plaintiff as he lay defenseless.

26. Defendants, including NOEL, WATSON, GREEN, HABEKOST, and JOHN OR JANE DOE 1-10 then unlawfully arrested Plaintiff by grabbing him by his body and limbs despite possessing no legal basis to do, as Defendants did not possess any credible evidence against Plaintiff regarding the commission of any crime or offense.

27. Defendants, including NOEL, WATSON, GREEN, HABEKOST, and JOHN OR JANE DOE 1-10 then proceeded to physically restrain Plaintiff while violently contorting his arms behind his back before affixing metal handcuffs to Plaintiff's wrists, which caused Plaintiff to sustain substantial physical pain in addition to the injuries he suffered from said defendants' physical assault just prior.

28. Defendants, including NOEL, WATSON, GREEN, HABEKOST, and JOHN OR JANE DOE 1-10, with callous disregard for Plaintiff's safety and health, then continued their physical assault by kicking Plaintiff in an incredibly dehumanizing manner as he laid upon the ground while cuffed and utterly defenseless, causing Plaintiff further substantial pain, the aggravation of his ongoing emotional distress, and continued shock.

29. Plaintiff complained to Defendants, including NOEL, WATSON, GREEN, HABEKOST, and JOHN OR JANE DOE 1-10, that the handcuffs were too tight and causing him substantial pain but said Defendants refused Plaintiff's requests to loosen their handcuffs.

30. As a result, Plaintiff suffered a fracture to his nose from the repeated physical assaults to his body that constitutes the use of excessive force, substantial pain and discomfort from his tightened handcuffs, emotional distress, shock, and humiliation.

31. Defendants, including NOEL, WATSON, GREEN, HABEKOST, and JOHN OR JANE DOE 1-10, then illegally searched Plaintiff's persons by rifling through his clothing and pulling out his pockets, despite the clear lack of any indicia of secreted contraband or unlawful activity to justify such invasive procedures.

32. Defendants, including NOEL, WATSON, GREEN, HABEKOST, and JOHN OR JANE DOE 1-10, then accused Plaintiff of a criminal offense.

33. Defendants, including NOEL, WATSON, GREEN, HABEKOST, and JOHN OR JANE DOE 1-10, during their arrest and detainment of Plaintiff, ignored any evidence exculpating him of the commission of any crime.

34. Defendants, including NOEL, WATSON, GREEN, HABEKOST, and JOHN OR JANE DOE 1-10, lacked any probable cause or reasonable suspicion arrest Plaintiff, because Defendants never observed Plaintiff commit any crime or violation of the law.

35. Due to the lack of probable cause for the searches or seizures of Plaintiff's person, the aforementioned conduct constituted the completed torts of Assault and Battery by Defendants, including NOEL, WATSON, GREEN, HABEKOST, and JOHN OR JANE DOE 1-10, and in the alternative, said defendants engaged in an egregious manner that led to Plaintiff's injuries in the form of substantial pain and discomfort, a fractured nose, significant pain to his right knee, emotional distress, shock, and trauma.

36. As a result of the conduct by said Defendants, Plaintiff was transported to Metropolitan Hospital where he was treated for his fractured nose, emotional distress, and other related symptoms.

37. Upon information and belief, at no point in time from Plaintiff's arrest to his incarceration did Defendants, including NOEL, WATSON, GREEN, HABEKOST, and JOHN OR JANE DOE 1-10, read Plaintiff his rights.

38. Defendants, including NOEL, WATSON, GREEN, HABEKOST, and JOHN OR JANE DOE 1-10, engaged in a gross deviation from acceptable police conduct and other conduct undertaken in bad faith.

39. At all times relevant hereto, Defendants, including NOEL, WATSON, GREEN, HABEKOST, and JOHN OR JANE DOE 1-10 were involved in the decision to stop, seize, search and arrest Plaintiff without reasonable suspicion or probable cause, or failed to intervene when they observed others doing so in the absence of any reasonable suspicion or probable cause.

40. At all times relevant hereto, Defendants, including NOEL, WATSON, GREEN, HABEKOST, and JOHN OR JANE DOE 1-10, subjected Plaintiff to excessive force, or failed to intervene when they observed others subjecting Plaintiff to excessive force.

41. Prior to Plaintiff being arraigned in criminal court, Defendants, including including NOEL, WATSON, GREEN, HABEKOST, and JOHN OR JANE DOE 1-10, signed, attested and filed the criminal court complaint against Plaintiff which falsely accused Plaintiff of a criminal offense and other related charges or in the alternative, filed

a criminal court complaint that withheld exculpatory evidence or fabricated evidence from the time of arrest that was material to Plaintiff's resulting criminal proceeding.

42. Defendants, including NOEL, WATSON, GREEN, HABEKOST, and JOHN OR JANE DOE 1-10 knowingly, maliciously and intentionally engaged in the fabrication of false and fictitious evidence, observations, events and occurrences, which Defendants falsely attributed to Plaintiff before forwarding to prosecutors.

43. Defendants, including NOEL, WATSON, GREEN, HABEKOST, and JOHN OR JANE DOE 1-10, engaged in fraud, the suppression of evidence, perjury, the gross deviation from acceptable police conduct and other conduct undertaken in bad faith.

44. Plaintiff asserts that Defendants, including NOEL, WATSON, GREEN, HABEKOST, and JOHN OR JANE DOE 1-10, employed tactics akin to police brutality to physically arrest Plaintiff with callous disregard for his constitutional rights and human rights.

45. Defendant City and the individually named police officers herein, have engaged in a policy, custom, or pattern and practice of illegally stopping, searching, arresting and criminally prosecuting African American males due solely to their impermissible and uncorroborated belief that such presence is tantamount to the commission of such suspected criminality.

46. Plaintiff asserts that the aforementioned unlawful acts committed by Defendants are representative of a pervasive policy, custom or pattern and practice within the City of New York, NYPD, DHSPD in particular.

47. Plaintiff asserts that Defendants, including NOEL, WATSON, GREEN, HABEKOST, and JOHN OR JANE DOE 1-10, used excessive force on him, due solely to their racially discriminatory prejudices against African American males, their intent to use the instant arrest as leverage against Plaintiff, so that they would provide Defendants with information regarding Defendants' true and only suspects, or other unrelated crimes or criminal suspects, their desires to fulfill an unconstitutional arrest quota and to benefit from increased overtime compensation.

48. Plaintiff further asserts that Defendants, including NOEL, WATSON, GREEN, HABEKOST, and JOHN OR JANE DOE 1-10, acted in such an unlawfully reprehensible manner, due to their unsubstantiated and unreasonable presumptions that Plaintiffs would be able provide said Defendants with information pertaining to unrelated criminal activity or suspects, solely because of his status as an African American male.

49. Defendants, including NOEL, WATSON, GREEN, HABEKOST, and JOHN OR JANE DOE 1-10, arrested Plaintiff, because of their racially discriminatory beliefs, which compelled Defendants to equate to Plaintiff's respective race, ethnicity or national origin to criminal guilt or criminal knowledge.

50. Defendants, including NOEL, WATSON, GREEN, HABEKOST, and JOHN OR JANE DOE 1-10, perpetrated multiple overt acts in furtherance of their obviously discriminatory inclinations and biases, namely the stop, search, assault, battery, seizure, and arrest of Plaintiff, despite possessing no evidence, credible or otherwise, to justify such conduct.

51. Defendants, including NOEL, WATSON, GREEN, HABEKOST, and JOHN OR JANE DOE 1-10 unlawfully stopped, questioned, searched, seized, employed excessive force, and arrested Plaintiff, due solely to Defendants' perception or consideration of Plaintiff's respective race, ethnicity, national origin, sex, gender or age.

52. Defendants, including including NOEL, WATSON, GREEN, HABEKOST, and JOHN OR JANE DOE 1-10, unlawfully stopped, questioned, searched, seized, employed excessive force and arrested Plaintiff, because of their improper and pernicious desires to prevent Plaintiff from exerting his First Amendment rights to engage in protected speech and activities, such as Plaintiff's refusal to yield to Defendants' unreasonably coercive demands to utter false confessions or assist defendants in the fabrication of evidence.

53. Defendants, including NOEL, WATSON, GREEN, HABEKOST, and JOHN OR JANE DOE 1-10, possessed no valid reason to approach, stop, question, search, employ excessive force, or arrest Plaintiff, which gives rise to the strong inference that such conduct resulted from Defendants' unjust motivations or proclivities, including Defendants' invidious and biased based discriminatory predilections against African American males, such as Plaintiff.

54. Defendants, including NOEL, WATSON, GREEN, HABEKOST, and JOHN OR JANE DOE 1-10, subjected Plaintiff to disparate treatment compared to other White or Asian individuals similarly situated, because Defendants did not stop, accuse, search, seize, arrest or cause criminal prosecutions to be initiated against any White or Asian pedestrians, who were engaged in activity identical or substantially similar to the kind

that resulted in the illegal search, seizure, assault and detention of Plaintiff, namely being lawfully present in a homeless shelter.

55. Defendants, including NOEL, WATSON, GREEN, HABEKOST, and JOHN OR JANE DOE 1-10, engaged in a conspiracy to discriminate against Plaintiff by personally conferring with each other, regarding the suppression of exculpatory evidence, fabrication of evidence, or the violence to be inflicted upon Plaintiff during his arrest.

56. Plaintiff asserts that the Defendants, including NOEL, WATSON, GREEN, HABEKOST, and JOHN OR JANE DOE 1-10, who violated their civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD, DHSPD, and the City of New York that the commission of such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD, DHSPD and City of New York or, at the very least, conclusive evidence that the City, NYPD, and DHSPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact with their police officers, including the individually named Defendants herein.

57. The individually named defendants herein, as well as other officers serving in the employ of the NYPD, DHSPD, and City of New York, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and constitution of the State of New York, all without incurring any ramifications for such

misconduct and, ostensibly, with the full and complete blessing of the NYPD, the City of New York and their respective policymakers and supervisors.

58. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption within the NYPD and City of New York, particularly the incredibly disconcerting proclivity of many NYPD officers to lie about subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses. Also detailed, is the NYPD's obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD's alarming tendency to, instead, reward and promote these officers, including those who were inculcated via incontrovertible evidence, such as video evidence.

59. The constitutionally repugnant behavior that persists within the ranks of the NYPD results from the NYPD's own policies, rules and procedures, namely the NYPD's incredibly flawed and illegal use of arrest quotas. Despite its illegality, such policies remain systemic throughout the NYPD and its individual commands. The NYPD, however, was not content in compelling its officers to effect as many arrests as possible, regardless of the presence of any legal right to do, it promulgated various subsets of quotas, which are predicated on race, color or ethnicity. Additionally, the NYPD, its supervisors or policymakers would assign varying point values to arrests, which were, again, impermissibly based upon the arrestee's race, color or ethnicity. Unsurprisingly, officers would be better rewarded for minority arrests or summonses. This egregious conduct has reported by numerous respected media outlets and publications and has

even formed the basis for federal lawsuits against the City and the NYPD, which were commenced by its own employee officers.

60. On June 17, 2020, the *New York Daily News* published an article, by Graham Rayman, entitled “Brooklyn Cop Claims he was Punished for not Meeting Arrest Quotas, Refusing to Take Responsibility for Controversial Arrest in which he Wasn’t Involved,” describing allegations from an NYPD Police Officer, Terrence Dickerson, that he was retaliated against by the NYPD for refusing to adhere to mandatory racially based arrest quotas and for his refusal to accept responsibility for a controversial and publicized arrest via the excessive force, despite the fact that he was not even at the scene.

61. Another article with a title that speaks for itself, also published by the *New York Daily News*, on December 5, 2019, and written by Graham Rayman, is entitled “Ex-Cop Details NYPD ‘Collar Quotas’ – Arrest Black and Hispanic Men, ‘No Cuffs on Soft Targets’ of Jews, Asians, Whites: Court Docs.”

62. *The New York Times*, on December 6, 2019, published an article by Joseph Goldstein and Ashley Southall, entitled “I Got Tired of Hunting Black and Hispanic People,” which revealed a disturbing account from a different NYPD Police Officer, Anthony Diaz, describing a police force that measures the quality of police work by the quantity of minority arrests.

63. On March 18, 2018, *The New York Times* published an explosive article, entitled “Promotions, Not Punishments for Officers Accused of Lying,” written by Joseph Goldstein. Mr. Goldstein shines a light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will

invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity availability of this type of evidence, an alarmingly small percentage of officer misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD's persistent reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusations relating to the officers' intentionally false statements, with some allegations coming from federal and state judges.

64. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled "Officers Said They Smelled Pot. The Judge Called Them Liars." Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics, but has become necessary for a variety of reasons, including the NYPD's failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.

65. On April 24, 2019, *The New York Times* published an article, entitled "Detective's Lies Sent Three People to Prison, Prosecutors Charge," by Sean Piccolo, detailing the lies of NYPD Second Grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least three innocent people. The article described how Det. Franco

lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through contradictory video evidence. Det. Franco's lies resulted in the innocent individuals each being sentenced to prison terms in excess of one-year.

66. Other articles include: (i) "Testilying' by Police: A Stubborn Problem," by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) "New York Detective Charged with Faking Lineup Results," by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) "He Excelled as a Detective, Until Prosecutors Stopped Believing Him," by Joseph Goldstein, *The New York Times*, October 17, 2017; (iv) "Review Board Notes Rise in New York Police Officers' False Statement," by J. David Goodman, *The New York Times*, May 14, 2015; (v) "In Brooklyn Gun Cases, Suspicion Turns to the Police," by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) "Detective is Found Guilty of Planting Drugs," by Tim Stelloh, *The New York Times*, November 1, 2011; and (vii) "The Drugs? They Came from the Police," by Jim Dwyer, *The New York Times*, October 13, 2011.

67. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article, entitled "2,495 Reports of Police Bias. Not One Was Deemed Valid by the N.Y.P.D." This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging that an officer acted with bias toward them, with not a single one being substantiated by the NYPD. Such a finding is plainly incredible and obviously the result of deliberately poor or nonexistent investigatory protocols. The report further impugned

the NYPD's commitment to combat the prejudices and the biases exhibited by many of its officers.

68. Upon information and belief, the NYPD, DHSPD, and the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in Plaintiff's arrests without probable cause.

69. Upon information and belief, the NYPD, DHSPD, and the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.

70. Defendants' actions, pursuant to Plaintiff's underlying arrest, which occurred without even the semblance of probable cause, were so blatantly violative of Plaintiff's civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD, DHSPD and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with Defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD, DHSPD, and City of New York.

71. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, DHSPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become

known after the completion of discovery, as such information is presently within the exclusive possession of Defendants, the NYPD, DHSPD, and City of New York.

72. Upon information and belief, the personnel files, records and disciplinary histories of the officer Defendants will reveal a history of Constitutional violations indicative of Defendant City's knowledge that the individual officer Defendants were unfit for employment as NYPD or DHSPD officers, or for employment in general, and that the probability of the individually named Defendants committing similar violations in the future was extremely high.

73. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City, DHSPD, and the NYPD were fully aware of Defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD, DHSPD, and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including Defendants, including NOEL, WATSON, GREEN, HABEKOST, and JOHN OR JANE DOE 1-10.

74. Upon information and belief, the individually named Defendants have combined to be named as Defendants in numerous lawsuits that have accused them of committing

violations similar or identical to those alleged herein, all of which have resulted no disciplinary or corrective action of any kind.

75. Upon information and belief, the NYPD, the DHSPD, and City of New York and have failed, or outright refused, to correct the individually named Defendants' predilections to engage in unconstitutional behavior or attempt to prevent the recurrence of such misconduct.

76. The aforementioned acts of Defendants, including the City, NOEL, WATSON, GREEN, HABEKOST, and JOHN OR JANE DOE 1-10, directly or proximately resulted in the deprivation or violation of Plaintiff's rights, as enumerated and set forth by the Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States, the constitution of the State of New York and the laws of the City and State of New York.

77. As direct or proximate results of said acts, Plaintiff was caused to suffer the loss of their liberty, irreparable reputational harm, the loss of earnings and potential earnings, substantial and permanent physical and psychological injuries, as well as severe and permanent emotional distress, including fear, embarrassment, humiliation, traumatization, frustration, extreme inconvenience and anxiety.

FIRST CAUSE OF ACTION**Unlawful Search & Seizure Under
New York State Law**

78. The above paragraphs are here incorporated by reference as though fully set forth herein.

79. Defendants subjected Plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

80. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

81. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

82. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.

83. Accordingly, Defendants violated Plaintiff's right to be free from unreasonable searches and seizures, pursuant to Article I, Section 12, of the New York State Constitution and Article II, Section 8, of the New York Civil Rights Law.

84. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of respondeat superior.

As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION

Unlawful Search & Seizure Under
42 U.S.C. § 1983 Against Individual NYPD and DHSPD Defendants

85. The above paragraphs are here incorporated by reference as though fully set forth herein.

86. Defendants subjected Plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

87. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

88. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

89. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.

90. Accordingly, Defendants violated Plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution.

91. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION

Assault & Battery Under
New York State Law

92. The above paragraphs are hereby incorporated by reference as though fully set forth.

93. Defendants caused Plaintiff's fear for his physical well-being and safety and placed him in apprehension of immediate harmful or offensive touching.

94. Defendants, including engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered him without his consent or other legal justification therefor.

95. Defendant City, as employer of the individual Defendants is responsible for their wrongdoing under the doctrine of respondeat superior.

96. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

Excessive Force Under

42 U.S.C. § 1983 Against Individual NYPD and DHSPD Defendants

97. The above paragraphs are here incorporated by reference as though fully set forth herein.

98. The Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.

99. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered him without his consent.

100. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION**Violations of Victims of Violent Crime Protection Act Under
New York City Law**

101. The above paragraphs are here incorporated by reference as though fully set forth herein.

102. Defendants' acts or series of acts constituted the commission of a misdemeanor or felony against Plaintiff, as defined in state or federal law, which presented a serious risk of physical injury to Plaintiff, regardless of whether said acts actually resulted in criminal charges, prosecutions or convictions.

103. Accordingly, Defendants committed crimes of violence against Plaintiff and violated his rights, pursuant to section 10-403 of the Administrative Code of the City of New York.

104. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

105. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION**Biased Based Profiling Under
New York City Law**

106. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

107. Defendants impermissibly relied upon the actual or perceived race, color, national origin, ancestry, citizenship status, gender, religion, religious practice, age, disability or sexual orientation of Plaintiff as the determinative factor in initiating law enforcement actions against Plaintiff, rather than Plaintiff's behavior or other information or circumstances that would link Plaintiff to suspected unlawful activity.

108. Accordingly, Defendants violated Plaintiff's rights, pursuant to section 14-151 of the Administrative Code of the City of New York.

109. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

110. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Deprivation of Rights & Denial of Equal Protection of the Law Under
New York State Law

111. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

112. Plaintiff, as an African American man, is a member of a racial minority and protected class.

113. Defendants discriminated against Plaintiff on the basis of race, color, national origin, ancestry, gender, religion, religious practice, age, disability or sexual orientation.

114. Defendants also engaged in the selective treatment of Plaintiff, in comparison to others similarly situated.

115. Defendants' discriminatory treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff for the exertion of his Constitutional rights, or a malicious or bad faith intent to injure Plaintiff.

116. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

117. Defendants, motivated by racial animus, applied facially neutral statutes with adverse effects against Plaintiff.

118. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.

119. Accordingly, Defendants violated Plaintiff's rights, pursuant to article I, section 11, of the constitution of the State of New York, article VII, section 79-N, of the New York Civil Rights Law and section 296, paragraph 13, of the New York Executive Law.

120. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

121. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Deprivation of Rights & Denial of Equal Protection of the Law Under
42 U.S.C. §§ 1981 & 1983 Against Individual NYPD and DHSPD Defendants

122. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

123. Plaintiff, as an African American man, is a member of a racial minority and protected class.

124. Defendants discriminated against Plaintiff on the basis of race, color, ethnicity or national origin.

125. Defendants engaged in the selective treatment of Plaintiff in comparison to others similarly situated.

126. Defendants' selective treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff for the exertion of their Constitutional rights, or malicious or bad faith intent to injure Plaintiff.

127. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

128. Defendants, motivated by racial animus, applied facially neutral penal statutes with adverse effects against Plaintiff.

129. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.

130. Accordingly, Defendants violated Plaintiff's rights, under the Equal Protection Clause of the Fourteenth Amendment to the Constitution of the United States.

131. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

132. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights & Failure to Prevent the Conspiracy Under
42 U.S.C. §§ 1983, 1985 & 1986 Against Individual Defendants

133. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

134. Defendants engaged in a conspiracy against Plaintiff to deprive him of his rights to engage in protected speech or activities, to be free from unreasonable searches and seizures, to be afforded a fair trial, and to not be deprived of his liberty or property without Due Process of law, in addition to Plaintiff's Constitutionally guaranteed privileges and immunities under the Fifth and Fourteenth Amendments to the Constitution of the United States.

135. Defendants committed overt acts in furtherance of their conspiracy against Plaintiff.

136. As a result, Plaintiff sustained injuries to their persons, was deprived of his liberty, rights or privileges as a citizen of the United States.

137. Defendants' conspiracy was motivated by a desire to deprive Plaintiff of his civil rights or because of some racial or otherwise class-based, invidious or discriminatory animus.

138. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiff's civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or in the process of being committed, possessed the power to prevent or aid in the prevention of the conspiratorial objective, and neglected to do so.

139. Accordingly, Defendants violated Plaintiff's rights, pursuant to the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States.

140. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

141. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

142. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

143. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

144. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

145. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

ELVENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual NYPD and DHSPD Defendants

146. The above paragraphs are here incorporated by reference as though fully set forth herein.

147. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

148. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

149. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Negligent Hiring, Training, Retention & Supervision Under
New York State Law

150. The above paragraphs are hereby incorporated by reference as though fully set forth.

151. Defendant City owed a duty of care to Plaintiff to adequately hire, train, retain and supervise its employee Defendants.

152. Defendant City breached those duties of care.

153. Defendant City placed the individually named Defendants herein in a position where they could inflict foreseeable harm.

154. Defendant City knew or should have known of the individual named Defendants' propensities for violating the individual civil rights of those they interacted with prior to the injuries incurred by Plaintiff.

155. Defendant City failed to take reasonable measures in hiring, training, retaining or supervising the individually named defendants, which would have prevented or mitigated the aforesaid injuries suffered by Plaintiff.

156. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

157. The above paragraphs are hereby incorporated by reference as though fully set forth.

158. Defendants arrested, detained and caused criminal prosecutions to be initiated against Plaintiff to compel the compliance or forbearance of some act.

159. Defendants had no excuse or justification to forcibly detain or initiate criminal prosecutions against Plaintiff, especially in the absence of any cognizable probable cause.

160. Defendants intended to inflict substantial harm upon Plaintiff.

161. Defendants acted to achieve a collateral purpose, beyond or in addition to the criminal prosecutions initiated and thereafter maintained against Plaintiff.

162. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

163. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual NYPD Defendants

164. The above paragraphs are hereby incorporated by reference as though fully set forth.

165. Defendants arrested, detained and caused criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.

166. Defendants had no excuse or justification to forcibly detain or initiate criminal prosecution against Plaintiff, especially in the absence of any cognizable probable cause.

167. Defendants intended to inflict substantial harm upon Plaintiff.

168. Defendants acted to achieve a collateral purpose, beyond or in addition to the criminal prosecution initiated and thereafter maintained against Plaintiff.

169. Defendants' actions therefore resulted in deprivations to Plaintiff's rights, pursuant to the Fourth and Fourteenth Amendments to the Constitution of the United States.

170. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTEENTH CAUSE OF ACTION
Municipal "*Monell*" Liability Under
42 U.S.C. § 1983 Against Defendant City

171. The above paragraphs are here incorporated by reference as though fully set forth.

172. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of his civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as Plaintiff, to such violative behavior.

173. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

174. Defendant City, its policymakers and supervisors failed to provide adequate training or supervision to their subordinates, to such an extent that is tantamount to the City's deliberate indifference toward the rights of those who may come into contact with Defendant City's employees.

175. Defendant City's employees engaged in such egregious and flagrant violations of Plaintiff's Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by Defendant City and its policymakers toward the rights of individuals, who may come into contact with Defendant City's employees.

176. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

177. Defendant City's conduct caused Plaintiff to be deprived of his civil rights, as guaranteed by the Constitution of the United States, via the First, Fourth, Fifth, Sixth & Fourteenth Amendments thereto.

178. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- o) On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- p) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- q) Awarding Plaintiff reasonable attorney's fees and costs pursuant to 42 U.S.C. § 1988;

Together with the costs and disbursements of this action.

JURY DEMAND

Plaintiff hereby demands a trial by jury.

Dated: Bayside, New York
January 4, 2022

SIM & DEPAOLA, LLP

Attorneys-at-Law

42-40 Bell Boulevard - Suite 405

Bayside, New York 11361

(718) 281-0400

By:



Ataur Raquib, Esq.
Attorneys for Plaintiff

ATTORNEY VERIFICATION

I, Ataur Raquib, an attorney admitted to practice in the courts of New York State, state that I am an associate with the firm of SIM & DEPAOLA, LLP, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief and, as to those matters, I believe it to be true. This verification is made by me and not by Plaintiff, because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
January 4, 2022


ATAUR RAQUIB, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

JOVORNE EDWARDS,

Plaintiff,

-against-

CITY OF NEW YORK, DEPARTMENT OF HOMELESS SERVICES, FRANTZIA NOEL,
JAMES WATSON, ERICK GREEN, KELLY HABEKOST, and JOHN or JANE DOE 1-10,

Defendants.

SUMMONS & VERIFIED COMPLAINT

SIM & DEPAOLA, LLP

By: Ataur Raquib, Esq.
Attorneys for Plaintiff
42-40 Bell Boulevard
Suite 405
Bayside, New York 11361
Tel. (718) 281-0400

TO: CORPORATION COUNSEL OF THE CITY OF NEW YORK

Attorneys for Defendants

Service of a copy of the within is hereby admitted.

Dated:

Attorney(s) for